

Kaushal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 August 2018 · Writ-C No. 29434 of 2018 · **Writ disposed; 16.5 representation to EE; coercive recovery stayed one month.**

HEADNOTE

A domestic consumer challenging a recovery citation for a disputed electricity demand was relegated to the representation before the Executive Engineer under paragraph 16.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction that a representation filed within a week be decided within one month, and coercive action on the citation was stayed for that period.

FACTUAL SUMMARY

Kaushal Singh, a domestic electricity consumer, challenged a recovery citation dated 31 May 2018 (first recorded as 31 May 2008 and later corrected) for Rs 2,00,000. He disputed the demand on the footing that no bill had been issued and that his load had been enhanced without notice. Counsel for the Electricity Department pointed to the representation before the Executive Engineer under paragraph 16.5 of the U.P. Electricity Supply Code, 2005. A correction application later substituted the citation date as 31 May 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::16.5

disputed bill — representation to Executive Engineer

HOLDING

Where a domestic consumer disputes a recovery citation, alleging that no bill was issued and load was enhanced without notice, paragraph 16.5 of the U.P. Electricity Supply Code, 2005 furnishes a remedy of representation before the Executive Engineer. The Court disposed of the writ with a direction that if such a representation was filed before respondent no. 4 within a week, it be considered and decided within one month, and stayed coercive action on the citation for that period. ¶ 4-6

PRINCIPLE TAGS

relegate-to-statutory-remedy A domestic consumer challenging a recovery citation for a disputed electricity demand was relegated to the representation before the Executive Engineer under paragraph 16.5 of the U.P. Electricity Supply Code, 2005.. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RS 2,00,000 RECOVERY DEMAND, INCLUDING ALLEGED NON-ISSUANCE OF BILL AND LOAD ENHANCEMENT WITHOUT NOTICE

Left to the Executive Engineer on a paragraph 16.5 representation ¶ 3-5